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Case Number: 25PSCV01405 Hearing Date: September 10, 2026 Dept: 6

CASE

NAME: Kai

J. Hoh v. Southlands Schools International dba Southlands Christian Schools, et al.

Claimant Kai J. Hoh's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Court GRANTS the petition subject to a sufficient explanation regarding the medical expenses discussed herein.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five days of the Court's order.

BACKGROUND

This is a premises liability case. On April 18, 2025, plaintiff Kai J. Hoh (Claimant or Plaintiff), an individual and minor by and through his Guardian ad litem Daniel Hoh (Petitioner), filed this action against defendants Southlands Schools International dba Southlands Christian Schools, Glenn Dunken, Brandon Schultz, Lorraine Smith (collectively, Defendants), and Does 1-50, alleging causes of action for premises liability, negligent supervision, and negligence.

On August 19, 2026, Petitioner filed a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Claimant.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Claimant has agreed to settle this action against Defendants in exchange for \$55,000.00. If approved, \$11,000.00 will be paid in attorney fees, \$0.00 will be paid for reimbursement of

litigation costs advanced by Claimant's attorneys, and \$2,586.60 will be paid for medical expenses, leaving a balance of \$41,413.40 for Claimant, to be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition does not include a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Claimant.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$11,000.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

(1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2) The amount of the fee in proportion to the value of the services performed.

(3) The novelty and difficulty of the questions involved and the skill required to perform the legal services

properly.

(4) The amount involved and the results obtained.

(5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees
and reimbursement of costs paid by the attorney.

(14) Statutory requirements for
representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).)
The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel contends to
have investigated the facts and circumstances of the incident, evaluated
liability and damages, communicated with the client and guardian ad litem,
obtained and reviewed medical records and billing materials, communicated with
opposing counsel and the liability insurer, negotiated the settlement,
addressed the health-plan reimbursement claim, coordinated the structured
settlement, and prepared the petition and supporting documents necessary to
obtain court approval. (Petition, Attach. 13a, ¶ 5.)

Novelty and Difficulty

Petitioner's counsel does not
address this factor. (See generally Petition, Attach. 13a.)

Amount Involved and Results Obtained

Petitioner's counsel indicates a
gross settlement of \$55,000.00. (Petition, Attach. 13a, ¶ 6.)

Nature and Length of Professional Relationship

Petitioner's counsel does not
address this factor except only that counsel was retained in January 2024.
(Petition, Attach. 13a, ¶ 3.)

Experience, Reputation, and
Ability of Counsel

Petitioner's counsel does not
address this factor. (See generally Petition, Attach. 13a.)

Time and Labor Required

Petitioner's counsel does not
address this factor except to indicate the work performed as noted above. (Petition,
Attach. 13a, ¶ 5.)

Acceptance of Case Precluding
Other Employment

Petitioner's counsel does not
address this factor. (See generally Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel indicates a
20% contingency fee, i.e., \$11,000.00. (Petition, Attach. 13a, ¶¶ 4, 7.)

"California

Rules of Court, rule 7.955 requires a trial court, in determining
reasonable attorney fees, to balance an attorney's interest in fair
compensation with the protection of the interests of a minor client. Thus, a
trial court 'must give
consideration to the terms of any representation agreement made between
the attorney and the representative of the minor or person with a disability
and must evaluate
the agreement based on the facts and circumstances existing at the time the
agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018)
27 Cal.App.5th 1167, 1176-1177, *italics in original*.)

The Court finds Claimant's
counsel has adequately demonstrated the reasonableness of the fee award in
light of the factors and circumstances in this case.

Medical Bills

Claimant has incurred \$11,665.10

in medical expenses, but only \$2,586.60 remains in medical expenses to be paid or reimbursed from the proceeds. (Petition, ¶ 12, subd. (a).) It is not entirely clear how Claimant calculated this amount. The petition shows \$11,665.10 in total medical expenses before any reductions, \$4,311.00 paid by private health insurance, and a negotiated reduction of \$1,724.40, which leaves \$5,629.70 unaccounted for. (Petition, ¶ 12, subds. (a)-(b).) The petition also indicates \$4,311.00 in total statutory or contractual liens but simultaneously states there are no statutory or contractual liens. (Petition, ¶ 12, subds. (a)(5), (b)(5)(i).) Counsel will need to address this at the hearing on this petition.

Costs

Petitioner's counsel seeks to recover \$0.00 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Claimant is \$41,413.40. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd. (b)(3).)

Prognosis

Claimant has not completely recovered from the effects of the injuries but the remaining effects are temporary. (Petition, ¶ 8, subd. (b).)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the

court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of
Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with
a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Petitioner filed a proposed order
approving the petition (Form MC-351).

Based on the foregoing, the Court GRANTS the petition subject
to a sufficient explanation regarding the medical expenses discussed above.

CONCLUSION

The Court GRANTS the petition subject
to a sufficient explanation regarding the medical expenses discussed herein.

Petitioner is ordered to provide
notice of the Court's ruling and file proof of service of same within five days
of the Court's order.